

30.01.2020

Note of conversation with Dawn Loader 31 mins

Discussing ICO guidance as below

The mother has not responded to the letter sent by post

DL does not know if LMW has been in school this week. DL will check the register.

CM suggesting that she may need to contact the mother by phone in order to progress matters. DL informing CM that the mother has previously said in the past that she would to move LMW to another school if necessary.

DL concerned that it is a subjective exercise and is concerned to get it right. CM of the view that although it could be argued that any decision is subjective but if the decision the school make is made using the ICO with objective reasons then there is nothing for the school to be worried about.

DL asking what type of questions to ask and CM confirming that such questions should be child focused based around the guidance of the ICO to find out what the child's level of understanding is in relation to the data concerned and her ability to understand and deal with the implications of exercising her rights, taking into account the specific issues listed in the ICO guidance for borderline cases. Open questions, for discussion and to assess the issues would be most appropriate so that neither parent can allege that suggestions were made by the school to encourage LMW to take a particular view.

DL of the view that it is most appropriate to see LMW on her own without her mother present but is concerned that the mother will not allow this.

ICO GUIDANCE

What matters is whether the child is able to understand and deal with the implications of exercising their rights. So for example, does the child understand what it means to request a copy of their data and how to interpret the information they receive as a result of doing so? When considering borderline cases, you should take into account, among other things:

- where possible, the **child's level of maturity and their ability to make decisions like this;**
- the **nature of the personal data;**
- any court orders relating to parental access or responsibility that may apply;
- any duty of confidence owed to the child or young person;
- any **consequences of allowing those with parental responsibility access to exercise the child's rights.** This is particularly important if there have been allegations of abuse or ill treatment;
- **any detriment to the child or young person if individuals with parental responsibility cannot access this information;** and
- **any views the child or young person has** on whether their parents should have access to information about them.

